

Multiple Choice

1. **Answer:** B

Options: A) Austin; B) Ulpian; C) Holland; D) Allen

Note: Ulpian, a prominent Roman jurist, is recognized for defining jurisprudence in a comprehensive manner that encompasses both divine and human matters, emphasizing the moral dimensions of law as the science of right and wrong.

2. **Answer:** B

Options: A) Happiness is less important than economic prosperity.; B) It is impossible to calculate all the consequences of one's acts.; C) Pain and pleasure are inevitable features of life.; D) Utilitarianism fails to take account of differences in social background.

Note: The correct answer highlights the fundamental limitation of Bentham's felicific calculus, as it relies on the assumption that one can accurately foresee and quantify all potential outcomes of an action, which is practically impossible in complex human situations.

3. **Answer:** C

Options: A) Individual stories are suspect.; B) The law is static.; C) Universal values are meaningless.; D) Literature reproduces repression.

Note: Lyotard's assertion highlights that in a postmodern context, grand narratives or universal truths that claim to provide absolute meaning or values are rejected, leading to the conclusion that such values are ultimately considered meaningless.

4. **Answer:** D

Options: A) Goodwin v UK (2002); B) Airey v Ireland (1979); C) Osman v UK (1998); D) Handyside v UK (1976)

Note: The correct answer is Handyside v UK (1976) because this landmark case established the doctrine of 'margin of appreciation,' allowing states a degree of discretion in balancing individual rights with public interests under the European Convention on Human Rights.

5. **Answer:** C

Options: A) The Commission required a commitment to submit disputes to the ICJ; B) The Commission required a change in boundaries; C) The Commission required a commitment to human rights and democracy; D) The Commission required an exchange of ethnic populations

Note: The Badinter Commission emphasized the importance of human rights and democracy as essential criteria for the recognition of the former Yugoslav republics, reflecting the international community's commitment to these fundamental principles in the post-conflict context.

True / False

6. **Answer:** True

Options: A) True; B) False

Note: The statement is true because the limitations of rehabilitative, deterrent, and restorative justice approaches have led to a renewed emphasis on retribution as a necessary component of the punishment framework in constitutional law.

7. **Answer:** True

Options: A) True; B) False

Note: The Analytical School of jurisprudence emphasizes that law should be understood through a logical framework and systematic examination of legal principles, prioritizing clarity and coherence in legal reasoning.

8. **Answer:** False

Options: A) True; B) False

Note: The statement is false because laws can and often do incorporate ethical considerations, reflecting societal values and moral principles alongside legal formalities.

9. **Answer:** True

Options: A) True; B) False

Note: Hart's distinction highlights that 'being obliged' refers to the external pressure to adhere to rules, while 'having an obligation' denotes an internalized acceptance of those rules, thereby clarifying the nature and function of legal rules within a legal system.

10. **Answer:** False

Options: A) True; B) False

Note: The statement is false because Article 2(4) of the UN Charter prohibits the threat or use of force against the territorial integrity or political independence of any state, but it does not categorically prohibit all forms of interference in domestic affairs, as some interventions may be justified under international law, such as humanitarian interventions or actions authorized by the UN Security Council.

Long Form Response

11. **Answer:** During negotiations, states have an obligation to engage in good faith, which ensures that the discussions are conducted in a meaningful manner. This requirement compels states to approach negotiations honestly, transparently, and with a genuine willingness to reach an agreement, thereby promoting constructive dialogue. Such obligations foster an environment where parties can explore potential compromises and solutions, rather than resorting to tactics that may undermine the negotiation process. By adhering to these principles, states not only uphold their legal and ethical responsibilities but also enhance the likelihood of achieving a successful and lasting resolution to their disputes. Consequently, these obligations serve as a foundational element in the negotiation process, ensuring that it is both productive and respectful.

Note: correct because it emphasizes that the obligation of states to engage in good faith is essential for fostering honest and constructive dialogue, which is critical for meaningful negotiations and the exploration of compromises.

12. **Answer:** Ethical relativism posits that moral principles are not universal but are instead shaped by cultural contexts, which can lead to significant implications for human rights. This perspective may undermine the universality of human rights, as practices deemed acceptable in one culture could be viewed as violations of rights in another. In contrast, cognitivism argues that moral statements can be objectively true or false, which supports the notion of universal human rights that transcend cultural boundaries. By asserting that certain rights are inherent and not subject to cultural interpretation, cognitivism provides a robust counterargument to ethical relativism, reinforcing the foundation of constitutional law that seeks to protect individual rights irrespective of cultural differences. Thus, cognitivism advocates for a more consistent application of human rights, challenging the moral ambiguity posed by ethical relativism.

Note: The answer correctly identifies that ethical relativism challenges the universality of human rights by suggesting that cultural context determines moral values, while cognitivism counters this by asserting the objectivity of moral truths, thereby reinforcing the concept of universal human rights in constitutional law.